

reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; *see also PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure). The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Here, Plaintiff asserts the work of 7 different attorneys and 1 clerk over the course of litigation amounting to 32.7 hours with a top hourly rate of \$550.00.

Based on the Court's own experience, the hourly rate of lead counsel at \$550 an hour is reasonable for Riverside County. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Again, Defendant not challenged any of the hourly rates so, no modification is needed.

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid.*) The court declines to award an enhancement or positive multiplier. Though Plaintiff's counsel took the case on a contingency basis, the risk of not obtaining fees in this case is virtually nonexistent as attorney fees are mandatory.

Attorney fees granted in amount of \$12,821.00 plus a multiplier of 1.2 for early resolution of the matter for a total fee amount of \$15,835.20. GRANTED

Costs

Plaintiff filed a Memorandum of Costs in the amount \$2636.15 which was not challenged. GRANTED

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600022	GOLDBERG VS GOLDENVOICE LLC	MOTION TO STRIKE COMPLAINT OF TESS GOLDBERG

Tentative Ruling: Sustained.

Sustained without leave to amend. Moving Defendants to file their answer to 1st cause of action within 20 days of this order becoming final.

Moving Defendants to provide notice pursuant to CCP 1019.5.

Plaintiff Tess Goldberg alleges she is a Jewish woman who attended the 2025 Coachella Valley Music and Arts Festival ("Festival"), produced, operated, and controlled by Defendants Goldenvoice, LLC ("Goldenvoice"), Anschutz Entertainment Group, Inc. ("AEG"), Paul Tollett, Melissa Ormond and Jay Marciano (collectively "Defendants"). During Weekend 1 of the Festival, a performing act booked and authorized by Defendants engaged in inflammatory chants such as "Fuck Israel" and "Free Palestine," and projected statements on a large visible screen, including "Israel is committing genocide" and conduct that triggered aggressive crowd responses and targeted hostility toward Jewish attendees. Plaintiff alleges she personally experienced fear and intimidation within the dense crowd environment and reasonably feared being identified or targeted as a Jewish attendee. Security failed to meaningfully intervene or de-escalate the situation. She did not attend Weekend 2 because she reasonably feared for her safety.

On January 5, 2026, Plaintiff filed this action. Following challenges to the pleadings, on June 29, 2026, Plaintiff filed her operative Second Amended Complaint ("SAC") alleging the following four (4) causes of action: 1) Negligence; 2) Violation of the Ralph Civil Rights Act (Civ. Code, § 51.7); 3) Intentional Infliction of Emotional Distress ("IIED"); and 4) Punitive Damages.

Defendants now demur to the 2nd, 3rd and 4th causes of action on the ground each fails to state sufficient facts to state a claim. (C.C.P., § 430.10(e).) Defendants argue Plaintiff fails to allege the 2nd cause of action for violation of the Ralph Act because she has failed to allege Goldenvoice or anyone else committed or threatened violent acts against her. As to the 3rd cause of action cause of action for IIED, it fails because as there is no outrageous conduct alleged. Finally, as to the 4th cause of action for punitive damages, this is not a separate claim.

In opposition, Plaintiff argues her claims are adequately alleged. The 2nd cause of action alleges five individuals surrounded her, blocked her path, physically pressed into her body, and prevented her from freely leaving because she is Jewish. She argues she has adequately alleged IIED as she reported the incident and Defendants acted with reckless disregard in failing to take corrective measures. She acknowledges punitive damages is a remedy but states she has alleged sufficient facts for same. Plaintiff also submits a declaration in support of her opposition. She requests leave to amend if the Court determines more detail is needed.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) On demurrer, the court accepts properly pleaded material facts as true but not legal conclusions. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hospital District* (1992) 2 Cal.4th 962, 967.) It is error to sustain a demurrer if the complaint states a cause of action on any legal theory, even one not specifically pleaded or articulated by the plaintiff. (*Id.* at p. 967.)

2nd Cause of Action - Violation of the Ralph Civil Rights Act (Civ. Code, § 51.7)

Under the Ralph Act, all persons within the state have the right to be free from violence, or intimidation by threat of violence, committed against their persons or property because of protected characteristics, including sex/gender. (Civ. Code, § 51.7(a); *see also* Civ. Code, § 51(b) and (e) [enumerating protected characteristics].) To state a claim under the act, a plaintiff must show that (1) the defendant threatened or committed violent acts against the plaintiff; (2) the defendant was motivated by his perception of plaintiff's protected characteristic (here, Plaintiffs' sex/gender); (3) the plaintiff was harmed; and (4) the defendant's conduct was a substantial factor in causing the plaintiff's harm. (See *Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 881 [*quoting* CACI 3023]; *see also Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1291 ["Under the Ralph Act, a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right"].)

Further, Civil Code §51.7(e)(1) states that: "Speech alone shall not support an action brought pursuant to this section, except upon a showing of all of the following:

(A) The speech itself threatens violence against a specific person or group of persons;

(B) The person or group of persons against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against them or their property;

(C) The person threatening violence is acting in reckless disregard for the threatening nature of their speech; and

(D) The person threatening violence has the apparent ability to carry out the threat." Liability may also be found if a defendant "aids, incites, or conspires" in the denial of a right protected under Civil Code section 51.7.

(Civ. Code, § 52(b).)

Here, Plaintiff has not alleged that moving Defendants committed or threatened violent acts against her, as required by the Ralph Act. The SAC alleges an unidentified group of individuals "confronted Plaintiff perceived her to be Jewish, asked Plaintiff, 'Are you a Jew?,' surrounded her from multiple directions, blocked her movement, pressed their bodies into Plaintiff's body, prevented Plaintiff from freely leaving the area, and told Plaintiff, 'Time for you to leave, you're not welcome here.'" (SAC, ¶ 58.) She alleges Defendants knowingly permitted an environment of intimidation by threat of violence directed at Jewish attendees. (SAC, ¶¶ 56-63.) She states Defendants "knew or should have known of the risk that Jewish attendees would be subjected to intimidation, threats, hostility, and physical confrontations, yet failed to take reasonable measures to prevent, address, investigate, or respond to such conduct, and thereby aided, encouraged, facilitated, ratified, or failed to prevent the denial of Plaintiff's rights protected by Civil Code section 51.7. (*Id.*, ¶¶ 61-62.) There are no allegations that Defendants committed or directly threatened the violent acts, as required by the statute. Moreover, the

conclusory allegation that Defendants “aided” in the alleged confrontation by unidentified individuals is not supported with any factual allegations. SUSTAINED

3rd Cause of Action - Intentional Infliction of Emotional Distress

To recover for IIED, the conduct at issue must be outrageous. (*Cervantez v. J.C. Penney Co.* (1979) 24 Cal.3d 579, 593.) Defendant also must have intended to cause or acted with reckless disregard of the possibility of causing, severe or extreme emotional distress, and plaintiff must have suffered this distress. There must also be a causal nexus. (*Fletcher v. Western National Life Ins.* (1970) 10 Cal.App.3d 376, 394.) Outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal.App.4th 736, 745.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Hernandez v. General Adjustment Bureau* (1988) 199 Cal.App.3d 999, 1007.) This cause of action must be pleaded with specificity. (*Schlauch v. Hartford Accident Ins.* (1983) 146 Cal.App.3d 926, 936.) This requires that the pleading allege “facts demonstrating the nature, extent or duration of [plaintiff’s] alleged emotional distress.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Here, the SAC identifies the following as the intentional and outrageous conduct by Defendants include knew that Plaintiff and other Jewish attendees faced a foreseeable risk of intimidation, targeting, hostility, and emotional trauma and despite receiving complaints, reports, warnings, and notice concerning attendee safety and hostility directed toward Jewish attendees, Defendants consciously disregarded those risks and failed to adequately respond to reports of intimidation. (SAC, ¶¶ 65-67.) These allegations are insufficient as they are not specific facts showing extreme and outrageous conduct toward Plaintiff by these specific Defendants. SUSTAINED

4th Cause of Action - Punitive Damages

“There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances set forth in Civil Code section 3294.” (*Hilliard v. A. H. Robins Co.* (1983) 148 Cal.App.3d 374, 391.) Plaintiff concedes that this is not a cause of action. SUSTAINED

Leave to Amend

The real issue is leave to amend. “If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747; see also *King v. Mortimer* (1948) 83 Cal.App.2d 153, 158 [on demurrer to original complaint, “unless it shows on its face that it is incapable of amendment, denial of leave to amend constituted an abuse of discretion, [Citations] irrespective of whether leave to amend is requested or not”].) Leave to amend should be granted when there is a reasonable possibility the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) The burden of establishing

that there is a reasonable possibility that the complaint could have been amended to cure the defect "is squarely on the plaintiff. [Citation.]" (*Id.*; see also *Campbell v. Regents of University of California* (2005) 35 Cal.4th 311, 320.) The plaintiff must "identify specific facts showing the complaint can be amended to state a viable cause of action. [Citation.]" (*Minnick v. Automotive Creations, Inc.* (2017) 13 Cal.App.5th 1000, 1004.)

Here, this court stated at the last hearing on demurrer that Plaintiff was "granted leave one additional time." (Ntc. of Ruling filed 6/18/26.) Defendants insist that leave to amend is not appropriate. Plaintiff has had multiple opportunities to amend, but has failed to show that the challenged claims are capable of amendment.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600022	GOLDBERG VS GOLDENVOICE LLC	DEMURRER ON 2ND AMENDED COMPLAINT OF TESS GOLDBERG

Tentative Ruling: Granted.

Moving Defendant to provide notice pursuant to CCP 1019.5.

Punitive damages allegations and prayer for relief in 2nd Amended Complaint are ordered stricken.